

- (1) The complaint in Class Action, filed on August 7, 2019 (Dkt. No. 1): Exhibit 1;
- (2) Plaintiffs' Unopposed Motion for Preliminary Approval of Class Action Settlement, dated December 31, 2024 (Lopez, Dkt. No. 336): Exhibit 2;
- (3) The *Lopez* Order Granting Motion for Preliminary Approval of Class Action Settlement; Preliminarily Certifying Settlement Class; and Approving Form and Content of Class Notice, dated February 10, 2025 (Lopez, Dkt. No. 341): Exhibit 3;
- (4) The *Lopez* Final Approval Order, dated September 4, 2025 (Lopez, Dkt. No. 406): Exhibit 4;
- (5) The First Supplemental Declaration of Lacey Rose re: Exclusions, dated August 6, 2025 (Lopez, Dkt. No. 384): Exhibit 5;
- (6) The Proposed Court-Ordered Curative Notice, dated September 5, 2025 (Lopez, Dkt. No. 408-1): Exhibit 6;
- (7) The *Lopez* Second Amended Final Approval Order, dated October 14, 2025 (Lopez, Dkt. No. 425): Exhibit 7;
- (8) The *Lopez* Final Judgment, dated October 14, 2025 (Lopez, Dkt. No. 426): Exhibit 8;
- (9) The "Potter Handy Third Party Opt Outs" Notice of Appeal, dated November 12, 2025 (Lopez, Dkt. No. 432): Exhibit 9;
- (10) Plaintiffs' Motion for Appeal Bonds Under Fed. R. App. P. 7, dated November 14, 2025 (Lopez, Dkt. No. 433): Exhibit 10;
- (11) Plaintiffs-Appellees' Motion for Summary Disposition of Potter Handy Third Party Opt-Outs' Notice of Appeal, dated November 19, 2025, in *Lopez v. Apple Inc.*, Case No. 25-7160 (9th Cir. 2025) (Dkt. Entry 9.1.): Exhibit 11;
- (12) The Order Granting Voluntary Dismissal from the Ninth Circuit, dated November 25, 2025 (Lopez, Dkt. No. 439): Exhibit 12;
- (13) The Declaration of Steven Weisbrot re: Notice and Administration, dated June 27, 2025 (Lopez, Dkt. No. 365-2): Exhibit 13;
- (14) Alameda County Superior Court Order, filed in *In re Essure*, JCCP No. 4887 (Alameda Cnty. Super. Ct.), on May 27, 2020: Exhibit 14;
- (15) Alameda County Superior Court Order re: Hearing on Motion for Stay of Proceedings filed by Kaiser Foundation Health Plan Inc. in *Arneja, et al. v. Kaiser Foundation Health Plan Inc.*, No. 25CV116428 (Alameda Cnty. Super. Ct.), on November 4, 2025: Exhibit 15; and
- (16) The Respondent's Superior Court Responses to Petition for Writ of Mandate in *Vaughn v. Tesla, Inc.* Case No. A173053, May 15, 2025: Exhibit 16.

Evidence Code section 452, subdivision (d), permits judicial notice of records of any court of this state or any court of record of the United States or of any state of the United States. (Code Civ. Proc., § 452, subd. (d).) Exhibits 1-15 are court records, therefore they are proper items of judicial notice. Thus, the Court takes judicial notice of the existence of the documents and the legal effect of the court orders but does not take notice of the truth of any disputed contents. (*Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 (*Oh*).) Accordingly, Apple's request for judicial notice is GRANTED.

B. Plaintiffs' Request⁸

Plaintiffs request judicial notice of the following items:

⁸ Plaintiffs filed the same request for judicial notice in support of their respective oppositions.

- (1) The Court's order in *Adam Salcido, et al. v. Google LLC* (24CV436497) which Sustained Defendant's Demurrer in part and Overruled in part: Exhibit 1; and
- (2) The Second Amended Final Approval Order in *Lopez*, dated October 14, 2025: Exhibit 2.

The exhibits are court records, thus, judicial notice of them is proper. (See Evid. Code § 452, subd. (d).) Thus, the Court takes judicial notice of the existence of the documents and the legal effect of the court orders but does not take notice of the truth of any disputed contents. (*Oh, supra*, 53 Cal.App.5th at pp. 79-81.) Plaintiff's request is GRANTED.

II. LEGAL STANDARD

The function of a demurrer is to test the legal sufficiency of a pleading. (*Trs. of Capital Wholesale Elec. Etc. Fund v. Shearson Lehman Bros.* (1990) 221 Cal.App.3d 617, 621.) Consequently, "[a] demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice." (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732, internal citations and quotations omitted; see also Code Civ. Proc., § 430.30, subd. (a).) "It is not the ordinary function of a demurrer to test the truth of the plaintiff's allegations or the accuracy with which he describes the defendant's conduct. ... Thus, ... the facts alleged in the pleading are deemed to be true, however improbable they may be." (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 958, internal citations and quotations omitted.)

In ruling on a demurrer, the allegations of the complaint must be liberally construed, with a view to substantial justice between the parties. (*Glennen v. Allergan, Inc.* (2016) 247 Cal.App.4th 1, 6.) Nevertheless, while "[a] demurrer admits all facts properly pleaded, [it does] not [admit] contentions, deductions or conclusions of law or fact." (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1120.) A demurrer will succeed where the allegations and matters subject to judicial notice clearly disclose a defense or bar to recovery. (*Casterson v. Superior Court* (2002) 101 Cal.App.4th 177, 183.)

III. DISCUSSION

Apple demurs to each cause of action in each operative complaint on the grounds that the plaintiffs are misjoined. (Code Civ. Proc., § 430.10, subd. (d).)

A. The *Lopez* Action

The *Lopez* Action was filed in 2019 in the United States District Court, Northern District of California. It was a class action involved the Siri triggers on Apple devices. On February 10, 2025, the court granted the *Lopez* plaintiffs motion for preliminary approval of class action settlement. On September 4, 2025, the court granted the *Lopez* plaintiffs' final approval motion. On October 14, 2025, the court issued the second amended final approval order.

B. Misjoinder

Code of Civil Procedure section 378 provides, "(a) all persons may join in one action as plaintiffs if: (1) they assert any right to relief jointly, severally, or in the alternative, in respect